Coronavirus: Court plan will not ease delays, lawyers warn

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Hundreds of thousands of people may wait until 2022 for justice despite a government announcement to speed up work in the Crown Courts, lawyers warn.

On Sunday, the Ministry of Justice announced that it wants Parliament to pass temporary legislation to extend the time that defendants can be held in custody in England and Wales while awaiting trial.

The law is one of the most important wheels of the criminal justice machine because it ensures that justice is as swift as possible for both suspects and victims. At present, defendants can only be held for 182 days after their first appearance in court, before there has to be an application to a judge to keep them inside for longer. Under the government's proposal, from the end of this month, that will be two months longer.

In practice, this decision builds more time into the court system - and it is part of a package of measures to manage the impact of coronavirus on the courts. Judges and court managers are struggling to find enough space to safely manage the social distancing of hundreds of people who would normally come into their buildings every day.

But criminal barristers say that the government's case is disingenuous. They say the delays to justice are of the government's own making, not because of coronavirus. They accuse ministers of taking a political decision to introduce yet more delay - which could lead to cases collapsing if witnesses withdraw cooperation - rather than finding the cash to get more courts operational.

According to official figures, more than 37,000 Crown Court cases were outstanding before the pandemic struck the UK. The Criminal Bar Association (CBA), which represents barristers who prosecute and defend across the country, says the backlog is now 43,000.

In recent years, the number of courtrooms in regular use has fallen as part of cuts to the courts budget - and as the number of sitting days has fallen, the backlog of cases has grown.

'Crisis they created'

James Mulholland QC, chairman of the CBA, said that the delays to justice were damaging to suspects, victims and witnesses. "You don't resolve the delays by incorporating further delays into the system," he said. "The people you punish unfairly by this mechanism are not only those wrongly accused of crime, because not everyone in custody is guilty - but the witnesses who will have to wait even longer to be heard. The backlog could have gone away if the government had allowed judges to sit and better financed the courts. Then along comes Covid, and the crisis that they've created, they can't properly address."

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